

Ram Kumar v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 9 August 2012 · WRIT - C No. 37297 of 2012 · **Writ dismissed; relegated to Section 127 statutory appeal**

HEADNOTE

Mandamus to correct a theft-assessment bill and to decide a representation refused. A representation is not a statutory appeal under Section 127 of the Electricity Act, 2003. The consumer was relegated to the appeal under the Act and the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Ram Kumar sought mandamus to correct an electricity bill of Rs. 2,40,550 and to decide his representation dated 20 June 2012. A theft assessment had been made against him on 24 May 2008 on a checking report; an FIR followed, and he was acquitted on 2 December 2011. The licensee submitted that against the final assessment the only remedy was a statutory appeal under Section 127 of the Electricity Act, 2003, and that no representation could be entertained.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

s127-appeal-against-theft-assessment

HOLDING

Against a theft/final assessment, a consumer's representation seeking correction of the electricity bill is not a statutory appeal under Section 127 of the Electricity Act, 2003. The High Court will not mandamus the licensee to correct the bill or decide that representation; the Act and the U.P. Electricity Supply Code, 2005 supply the appeal, which the consumer may pursue. ¶ 1-2

PRINCIPLE TAGS

theft-assessment-is-under-s126-appealable-s127 The 24 May 2008 theft assessment was treated as a final assessment for which the only remedy was a Section 127 appeal; criminal acquittal did not convert the dispute into a writ for bill correction. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE THEFT ASSESSMENT AND BILL OF RS. 2,40,550

No merits examination; consumer remitted to the statutory appeal. ¶ 1-2

NOT DECIDED — EFFECT OF CRIMINAL ACQUITTAL DATED 2 DECEMBER 2011 ON THE ASSESSMENT

¶ 1-2